

(holding self-represented parties to the "same 'restrictive procedural rules as an attorney'").

While self-represented litigants are not entitled to special treatment, *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523, trial courts are mindful of their potential lack of legal sophistication. As noted in *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.” The court has a duty to ensure such litigants are not inadvertently misled. In the present case, the record is devoid of any evidence that Plaintiff was misled by either the Court or Defendant. To the contrary, the Court’s prior orders established clear deadlines for compliance with discovery obligations, which Plaintiff willfully disregarded.

Plaintiff’s Failure to Oppose the Motion

California Rules of Court, Rule 8.54(c) provides that “A failure to oppose a motion may be deemed a consent to the granting of the motion.” This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is “well-within” the court’s discretion to deem such inaction “tantamount to a concession that its position in the litigation was not substantially justified.” *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785.

Applied to the present matter, Plaintiff’s failure to file any opposition to the Motion for Terminating Sanctions is deemed a consent to the granting of the relief sought by Defendant.

Code of Civil Procedure § 2030.060 requires Plaintiff to serve responses to interrogatories within thirty (30) days of service. Where a party fails to serve a timely response, Section 2023(d)(3) allows the Court to impose “an order dismissing the action, or any part of the action, of that party.”

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant’s Motion for Terminating Sanctions. It is therefore ordered that Defendant Hyatt Hotels Corporation’s Motion for Terminating Sanctions is **granted**. It is further ordered that this action is **dismissed** with prejudice. The Court will to execute the proposed order lodged by Defendant on September 15, 2025 and orders the Defendant to file a Judgment accordingly.

5. 9:00 AM CASE NUMBER: C23-01292
CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA
HEARING IN RE: JOINDER IN DEF'S MOTION TO COMPEL PATRICIA KUBICHEK'S DEPOSITION
FILED BY: YRUETA, MICHAEL
TENTATIVE RULING:

See Tentative Ruling for Line 20, below.